

Isteyak v. U.P. Power Corporation Ltd.

Allahabad High Court · Division Bench · 28 November 2019 · WRIT - C No. 38981 of 2019 · **Writ disposed: petitioner to appear before the Executive Engineer with objections; speaking final order within four weeks; coercive recovery stayed seven weeks or until disposal of the objection; Section 127 appeal left open against the final order; non-appearance revives the citation.**

HEADNOTE

A writ seeking quashing of a tehsildar recovery citation on the plea of no hearing and non-compliance with the U.P. Electricity Supply Code, 2005, is disposed of without a merits decision. The consumer is directed to appear before the Executive Engineer with objections and evidence; a speaking final order is to follow; coercive action is stayed for a limited period; and any challenge to the final order lies in appeal under Section 127 of the Electricity Act, 2003.

FACTUAL SUMMARY

Isteyak petitioned the Allahabad High Court to quash a recovery citation dated 11 June 2019 issued by the Tehsildar, Tehsil Deoband, District Saharanpur, at the instance of U.P. Power Corporation. He alleged that the respondents were taking coercive recovery steps without giving him an opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. The electricity department was represented. No assessment order or Supply Code clause was identified on the face of the short order.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

recovery citation without final order; speaking order then s.127 appeal

HOLDING

Where a consumer challenges a recovery citation on the ground that coercive action was taken without hearing and without following the Supply Code, the writ court will not quash the citation on merits. It will direct the consumer to appear before the Executive Engineer with objections and evidence, require a speaking and reasoned final order within a fixed time, stay coercive recovery for a limited period or until disposal of the objection, and leave any challenge to that final order to the statutory appeal under Section 127 of the Electricity Act, 2003. Default in appearance or in filing the objection vacates the stay and revives the citation.

¶ 4-7

PRINCIPLE TAGS

final-assessment-order-relegates-assessee-to-section-127-appeal

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NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CITATION VIOLATED THE U.P. ELECTRICITY SUPPLY CODE, 2005

The petitioner invoked the Code generally; no clause was applied and compliance was not examined. ¶ 3-4

NOT DECIDED — MERITS OR QUANTUM OF THE UNDERLYING ELECTRICITY DUES

¶ 4-6

